

Ugrasen Mishra v. Executive Engineer and Others

Allahabad High Court · Division Bench · 26 May 2011 · Writ - C No. 19217 of 2011 · **Writ disposed; bill-accuracy objection remitted to clause 6.5(b); recovery stayed on Rs 3 lakh deposit.**

HEADNOTE

Where a consumer disputes the accuracy of an electricity bill after disconnection and recovery has been initiated, clause 6.5(b) of the U.P. Electricity Supply Code, 2005 supplies the remedy: a complaint to the competent authority, informed to be the concerned Executive Engineer. The writ court does not decide the bill on merits. The petition is disposed by directing the consumer to file objections to the 19.02.2010 bill of Rs 6,21,476 with a deposit of Rs 3 lakh within four weeks; the Executive Engineer is to decide those objections by a reasoned speaking order after hearing, preferably within two months; recovery on that bill is stayed for four months or until that decision, whichever is earlier, and will abide it; failure to file objections or make the deposit automatically vacates the stay.

FACTUAL SUMMARY

Ugrasen Mishra took a 25 kW electricity connection for his crusher plant. He alleged that despite the requisite deposit a new transformer was not installed in place of the old one, so the crusher could not run sufficiently on the supply and he continued to use a generator. The connection was disconnected on 18 March 2007 without a disconnection certificate. He then received a bill dated 26 April 2007 for Rs 1,69,104 and a further bill dated 19 February 2010 for Rs 6,21,476. Recovery proceedings were initiated for the stated outstanding dues. He filed Writ-C No. 19217 of 2011 disputing those bills, particularly the 19 February 2010 demand. After adjournments for the licensee's instructions and a supplementary affidavit annexing the bills, the Division Bench heard the petition on 26 May 2011.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

disputed bill — clause 6.5(b) complaint to Executive Engineer

QUESTION

Where a consumer disputes the accuracy of an electricity bill and recovery has been initiated, should the writ court decide the demand or relegate the dispute to clause 6.5(b)?

HOLDING

Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 provides that if a consumer disputes the accuracy of any bill, he may file a complaint with the competent authority, informed to be the concerned Executive Engineer. The writ court does not adjudicate the claim on merits. The consumer is to submit objections to the 19.02.2010 bill with a deposit of Rs 3 lakh within four weeks; the Executive Engineer is to decide them by a reasoned speaking order after hearing, preferably within two months of receipt; recovery on that bill remains stayed for four months or until that decision, whichever is earlier, and will abide it; if objections or the deposit are not made, the stay stands automatically vacated. ¶ 1-5

QUALIFIER

The Rs 3 lakh deposit (against the Rs 6,21,476 bill) is a case-specific condition of stay, not a construction of a fixed deposit under clause 6.5(b).

FLAG Source PDF compiles listing orders of 4.4.2011, 21.4.2011, 3.5.2011 (R.K. Agrawal and Bharati Sapru JJ.) and 13.5.2011; the judgment under record is 26.5.2011. Paragraphs of that order are unnumbered except the five numbered conditions; paras here refer to those conditions.

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ disputing bill accuracy and recovery was not decided on merits; the consumer was sent to file a clause 6.5(b) complaint before the Executive Engineer, with recovery stayed on a time-

bound deposit. ¶ 1-5

6.5b-quantification-dispute The Court treated the challenge to the 19.02.2010 bill of Rs 6,21,476 as a clause 6.5(b) dispute as to accuracy of the bill, to be decided by the competent authority on objections. ¶ 1-5

billing-objection-to-executive-engineer-under-6.5 The Court recorded that the competent authority under clause 6.5(b) is the concerned Executive Engineer, who is to hear the consumer and pass a reasoned speaking order on the objections. ¶ 1-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLS DATED 26.04.2007 AND 19.02.2010

The Court expressly did not adjudicate the claim on merits; the 19.02.2010 bill was left to the Executive Engineer on clause 6.5(b) objections. ¶ 1-5

NOT DECIDED — ALLEGED FAILURE TO INSTALL A NEW TRANSFORMER AND DISCONNECTION WITHOUT CERTIFICATE ON 18.03.2007

Recited from the writ averments as background; not decided. ¶ 1-5